

Lokesh v. Uttar Pradesh Power Corporation Limited

Allahabad High Court · Division Bench · 15 July 2025 · 2025:AHC:113864-DB · Writ-C No. 17440 of 2025 · **Writ disposed of as connection already given.**

HEADNOTE

Purchaser sought a new connection; the licensee demanded the vendor's arrears of Rs.18,476. Petitioner paid and the connection was given. The writ was disposed of as relief already obtained. The Court recorded, but did not decide, the licensee's submission that the Electricity Supply Code, 2005 makes seller and purchaser both liable for arrears.

FACTUAL SUMMARY

Lokesh purchased property and applied to Uttar Pradesh Power Corporation Limited for an electricity connection. The licensee demanded unpaid arrears of Rs.18,476 attributed to consumption by the vendor. The petitioner said he was ready to deposit that sum. On 3 July 2025 the Court listed the matter for production of the payment receipt so a connection direction could be considered; the licensee undertook to connect on payment. On 15 July 2025 counsel reported that the arrears had been paid and the connection given.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ disposed as relief already obtained

HOLDING

Once the purchaser had paid the vendor's arrears and the licensee had given the connection, no further order was required and the writ petition was disposed of. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY SUPPLY CODE, 2005 MAKES A PURCHASER LIABLE FOR THE VENDOR'S UNPAID ELECTRICITY ARREARS AS A CONDITION OF A NEW CONNECTION

Recorded only as the licensee's submission; the petitioner paid the arrears and obtained the connection. ¶ 1